

THE PREVENTION OF
**SEXUAL
HARASSMENT**
OF Women
At WorkPlace

Agenda

- What is Sexual Harassment
- Laws Governing Sexual Harassment
- Who is an employee?
- What is work place?
- How to prevent sexual harassment
- Internal Complaints Committee
- Procedure for enquiry
- Punishments



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What Is Sexual Harassment

Meaning

- ❑ ANY UNWELCOME ACT or behavior
- ❑ SEXUAL in nature
- ❑ A SUBJECTIVE experience
- ❑ IMPACT not the Intent that matters

Includes:

- ✓ Physical contact
- ✓ Abusive Sounds
- ✓ Making sexually colored remarks
- ✓ Using sexually abusive language or signs in the presence of woman employee;
- ✓ Showing pornography or the likes
- ✓ Stalking
- ✓ vulgar/indecent jokes, phone calls, text messages, e-mails,
- ✓ Physical confinement or touches against the will and likely to intrude upon one's privacy; or
- ✓ Demand or request for sexual favours;



Also includes....

- ☐ Implied or explicit promise of PREFERENTIAL TREATMENT in her employment; or
- ☐ Implied or explicit THREATENING TREATMENT in her employment; or
- ☐ Implied or explicit THREAT ABOUT PRESENT AND FUTURE EMPLOYMENT STATUS; or
- ☐ HOSTILE WORK ENVIRONMENT
- ☐ Interference with her work
- ☐ Humiliating treatment likely to affect her health or safety.



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Also
includes....



Laws Governing Sexual Harassment



- ✧ The Sexual Harassment of women at workplace (Prevention, Prohibition and Redressal) Act, 2013 and Rules made thereunder.
- ✧ Indian Penal Code (Section 209, 354, 376 and 509), 1860; and
- ✧ Industrial Employment (Standing Orders) Act, 1946

Who is Employee

Employee means a person employed by Company for any work and includes:-

- ❖ Employed on regular, temporary, ad hoc or daily wage basis;
- ❖ Either directly or through an agent, with or without the knowledge of the principal employer ;
- ❖ Whether for remuneration or not or working on a voluntary basis or otherwise;
- ❖ Whether the terms of employment are express or implied ; and Contractor, coworker, a contract worker, probationer, apprentice or called by any other such name.





What is workplace

Workplace includes:-

- ✦ All premises including Corporate Office, head office, branch offices and all other premises, locations, establishments, institutions, units, sites controlled directly or indirectly by the Company and/or where business of the Company is conducted;
- ✦ All other premises where employees of the Company visit arising out of or during the course of their employment including official events; and
- ✦ Includes the transportation and accommodation, if any, provided by the Company for employees arising out of or during the course of employment for commutation or residence purposes.



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How to prevent?

Following are the responsibilities of the employer under the Act:-

- ✦ Constitution of Internal Complaint Committee (ICC) to handle the complaints of sexual harassment;
- ✦ Display on the notice board of the premises giving full details of members of ICC;
- ✦ Display at conspicuous places at workplace, penalties & consequences of sexual harassment ;
- ✦ Providing training to sensitize the employees on the issues and implications of sexual harassment at workplace and organizing orientation programme(s) for members of ICC.



What to do?

- ✦ Don't ignore it. In the hope that it will go away.
- ✦ Don't blame yourself and don't delay.
- ✦ Be sure to say 'No' clearly and firmly.
- ✦ Speak Out. Speaking out about sexual harassment is an effective tool in combating it.



What are the remedies?



- ✦ Any aggrieved woman employee may file a complaint with ICC for Redressal of her grievances at the **prescribed contact details**, preferable **within a period of 3 months** of the date of incident of sexual harassment or in case of series of incidents, within a period of 3 months from the date of last incident.
- ✦ The complaint shall consist of name of the Respondent(s), date and details of incident of sexual harassment, name and details of witness, if any, along with the supporting documents.
- ✦ It is the responsibility of ICC to send notice to Respondents (against whom a complaint of sexual harassment has been made) within 7 (seven) working days.
- ✦ The Respondent shall file his reply to the complaint along with supporting documents

Who is eligible to file a complaint?

- ✦ Aggrieved woman herself;
- ✦ Where the Aggrieved Woman is unable to make a Complaint on account of her physical or mental incapacity , a Complaint may be filed by any prescribed person, on her behalf;
- ✦ Where the Aggrieved Woman for any other reason is unable to make a Complaint, a Complaint may be filed by a person who has knowledge of the incident, with her written consent;
- ✦ Where the Aggrieved Woman is dead, a Complaint may be filed by any person who has knowledge of the incident, with the written consent of her legal heir(s).



ICC @ AppX

Email: posh@app-xcelerate.com

Members:

- Chaitra
- Uma
- Himasree Achanta
- Sulthana
- Venkat



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Procedure of Enquiry

CONCILIATION –

- ✦ The ICC may, before initiating an inquiry, at the request of the Aggrieved Woman, take steps to settle the matter between her and the Respondent.
- ✦ No monetary settlement shall be made as a basis of conciliation.
- ✦ The settlement terms shall be recorded in writing and forwarded to the Board of Directors of the Company. Copies of the same shall be provided to the Aggrieved Woman and the Respondent.
- ✦ Where a settlement has been arrived at, no further inquiry shall be conducted by the ICC.



Procedure of Enquiry

- ✦ Upon receipt of the responses from the Respondent and the Complainant, the ICC shall conduct a hearing, where both the Complainant and the Respondent shall be heard in person.
- ✦ ICC shall be empowered to call upon such of the Employees who may have been witness to the incident(s) of Sexual Harassment and/or connected in any manner thereto.
- ✦ All Employees shall extend their fullest co-operation to ICC.
- ✦ Upon completion of the hearing, the ICC shall prepare its complete report, setting out its recommendations on the disciplinary action(s) to be taken against the Respondent or Complainant (as the case may be).



Punishment for Sexual Harassment

- ✦ To take action for sexual harassment as an act of misconduct in accordance with the rules/regulations of the Company governing 'conduct and discipline' as applicable to the Respondent; **and/or**
- ✦ To deduct such amounts from the salary or wages of the Respondent as may be considered appropriate to be paid to the Complainant as per the Policy of the Company.
- ✦ Section 354, 354 A, 354B, 354 C, 354 D and 509 of Indian Penal Code, 1860 provides for punishment for offences of outraging the modesty of woman, sexual harassment, disrobe, voyeurism, stalking and insulting the modesty of woman respectively and the punishment ranges between rigorous imprisonment from 1 to 3 years AND fine or both.



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Punishment for Malicious Compliant or False Evidence

If an Employee is found to have raised a malicious or false Complaint or given any false evidence, such complainant or such person making evidence may also be subject to :-

- ✦ Appropriate disciplinary action, which may include termination of employment, engagement or relationship with the Company, as the case may be.



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Absence of complaints of sexual harassment
doesn't necessarily means absence of sexual
harassment.....



Refrain from...

- Behavior that may offend or hurt people at your workplace;
- Behavior that cause harassment to any women employee at your workplace;
- Behavior that may be interpreted by another as sexual harassment;
- Behavior that may support sexual harassment in any manner;
- Disbelieving a woman when she shares about harassment. Remember that sexual harassment is 'Unwelcome Behavior'.
- Involvement in trivializing the matter of sexual harassment;
- Filing or supporting any malicious or false complaint;
- Producing any false evidence of sexual harassment.



What can you do.....

- Be Professional all the time;
- Set a positive example;
- Think before making personnel comments;
- Be supportive of people who wish to talk about being sexually harassed;
- Direct them to the appropriate persons/authorities;
- Hold the harasser accountable for his actions. Don't make excuses for him;
- Demand that the harassment be stopped;
- Report sexual harassment to responsible person in the organization.



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Say 'No' to Sexual Harassment



Let's make AppXcelerate Solutions Pvt Ltd, a safe and healthy workplace



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